



National Insurance and Supplementary Benefit Act 1973

1973 CHAPTER 42

An Act to amend the provisions of the National Insurance Acts 1965 to 1972, the National Insurance (Industrial Injuries) Acts 1965 to 1972 and the Industrial Injuries and Diseases (Old Cases) Acts 1967 to 1972; to make further provision in relation to polygamous marriages for the purposes of any of those Acts and of the Family Allowances Act 1965; to amend Schedule 2 to the Ministry of Social Security Act 1966; to make parallel provision for Northern Ireland; and for purposes connected with those matters.

[25th July 1973]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Benefits and contributions

1.—(1) In the National Insurance Act 1965 (hereafter in this Act referred to as “the Insurance Act”), in Schedule 3 (which sets out the weekly rates of benefits under that Act) there shall be substituted the provisions set out in Schedule 1 to this Act for those set out in Schedule 1 to the National Insurance Act 1972.

Weekly rates of benefits under National Insurance Acts 1965 and 1966.
1965 c. 51.

(2) In sections 2(4) and 4(1) of the National Insurance Act 1966, in the words inserted by the amendments made by section 6 of the National Insurance Act 1971 (under which certain

1972 c. 57.
1966 c. 6.
1971 c. 50.

earnings-related benefits may include an amount equal to 15 per cent. of the amount, up to £12, by which the relevant earnings exceeded £30), for the word "£12" there shall be substituted, for cases where the tax year there referred to is later than the year 1973-74, the word "£24" instead of the word "£18" substituted by section 1(5) of the National Insurance Act 1972.

1972 c. 57.

Contributions
under
National
Insurance
Act 1965.

2.—(1) In the Insurance Act, in Schedule 1 (which sets out the weekly rates of contributions under that Act) there shall be substituted the provisions set out in Schedule 2 to this Act for those set out in Schedule 2 to the National Insurance Act 1972; and there shall be paid out of money provided by Parliament any increase resulting from this subsection in the sums so payable by way of Exchequer supplement under section 7 of the Insurance Act.

1969 c. 44.

(2) In section 4(1) of the Insurance Act, in the paragraph (c) inserted by the amendment made by section 1(2) of the National Insurance Act 1969—

(a) in sub-paragraphs (i) and (ii) (whereby the amount of any graduated contribution includes $4\frac{1}{2}$ per cent. of any amount, up to £9, by which the relevant payment of remuneration exceeds £9 where the employment is not a non-participating employment and $\frac{1}{2}$ per cent. of that amount where the employment is a non-participating employment), for the words " $4\frac{1}{2}$ per cent." and " $\frac{1}{2}$ per cent." there shall be substituted respectively the words "5 per cent." and "0.75 per cent."; and

(b) in the words following those sub-paragraphs (whereby, as those words were originally enacted, the amount of any graduated contribution included $3\frac{1}{4}$ per cent. of any amount, up to £12, by which the relevant payment of the remuneration exceeded £18), for the words " $3\frac{1}{4}$ per cent." and "£12" there shall be substituted the words "5 per cent." and "£36" instead of the 4.75 per cent. and £30 substituted by section 3(2) of the National Insurance Act 1972.

1971 c. 50.

(3) In section 10(1)(a)(iii) of the Insurance Act (which, as amended by the National Insurance Act 1971, provides that regulations may except persons from liability to pay contributions where they are not in receipt of an annual income exceeding £468), for the word "£468" there shall be substituted the word "£520", and the like substitution shall be made in any regulations made under the said section 10(1)(a)(iii) which are in force at the passing of this Act.

(4) The contributions to be paid under the Insurance Act out of money provided by Parliament shall include, in addition to

the Exchequer supplements, in respect of the financial year 1974-75 and each subsequent financial year, the sum of £275 million, instead of the amount required by section 3(3) of the National Insurance Act 1972; and the contributions under this subsection shall be paid in such manner and at such times as the Treasury may determine. 1972 c. 57.

3.—(1) In the National Insurance (Industrial Injuries) Act 1965 (hereafter in this Act referred to as “the Industrial Injuries Act”) in Schedule 3 (which sets out the weekly rate or amount of benefit) there shall be substituted the provisions set out in Schedule 3 to this Act for those set out in Schedule 3 to the National Insurance Act 1972. Industrial injuries and diseases (benefits and contributions). 1965 c. 52.

(2) The increase of a disablement pension under section 18 of the Industrial Injuries Act (which relates to increases in respect of adult dependants) for any period for which the beneficiary is entitled to an unemployability supplement in respect of the pension shall be at the rate specified in paragraph 8A of Schedule 3 to that Act; and accordingly at the end of subsection (2) of that section there shall be inserted the words “but with the substitution, in the case of a beneficiary who is so entitled, of the words ‘paragraph 8A’ for the words ‘paragraph 8’”.

(3) In the Industrial Injuries and Diseases (Old Cases) Act 1967 the word “£4·70” (instead of the word “£4·10” substituted by section 4(4) of the National Insurance Act 1972) shall be substituted— 1967 c. 34.

- (a) for the rate specified in section 2(6)(c) (maximum weekly rate of a lesser incapacity allowance supplementing workmen’s compensation); and
- (b) for the rate specified in section 7(2)(b) (industrial diseases benefit schemes: weekly rate of an allowance payable where disablement is not total).

(4) In Part I of Schedule 2 to the Industrial Injuries Act, as amended by the National Insurance Act 1971 and the National Insurance Act 1972, in column 3 (which sets out the weekly rates of employers’ contributions under the Industrial Injuries Act) the rate of 7p. applicable where the insured person is a man over the age of eighteen shall be amended to 9p., the rate of 5p. applicable where the insured person is a woman over that age shall be amended to 7p. and the rate of 3p. applicable where the insured person is a boy under that age shall be amended to 4p; and there shall be paid out of money provided by Parliament any increase resulting from these amendments in the contributions so payable under section 2(1)(b) of the Industrial Injuries Act. 1971 c. 50.

Miscellaneous

Consequences
of forgoing
certain
benefits in
order to
receive
unabated
sick pay.

- 4.—(1) This section applies to any arrangement—
- (a) which relates to pay during absence from work which can be abated on account of benefit unless the benefit is not claimed or paid, and
 - (b) which is for the time being approved for the purposes of this section by the Secretary of State,

and in this section “benefit” means—

sickness benefit,
invalidity benefit,
maternity allowance,
injury benefit, and

1966 c. 6.

earnings-related supplement under section 2 of the National Insurance Act 1966.

(2) A person who, in pursuance of any such arrangement, has not claimed benefit, but would have been entitled to the benefit if he had claimed it, shall, unless or except so far as the Secretary of State by regulations provides otherwise, be deemed to be entitled to the benefit for all the purposes of the Insurance Act and of the Industrial Injuries Act (except so as to confer a right to payment of the benefit).

(3) The Secretary of State may, with the consent of the Treasury—

- (a) issue out of the National Insurance Fund and the Industrial Injuries Fund sums equal to the respective amounts, as estimated in accordance with this section, which, but for any arrangement to which this section applies, would have been paid out of those Funds by way of benefit; and
- (b) deal with those sums in accordance with the following provisions of this section.

(4) Any such sum which is attributable to an arrangement relating to the members, officers and servants of the Post Office shall be paid to the Post Office.

(5) Subject to subsection (4) above, any such sum shall be paid to such person or fund (including the Consolidated Fund) as the Treasury may direct.

(6) The amounts mentioned in subsection (3)(a) above shall be estimated—

- (a) where the payment is to be made into the Consolidated Fund, by the Secretary of State; and
- (b) in any other case, in such manner as may be agreed between the person receiving the payment (or responsible for the fund to which the payment is made) and the Secretary of State acting with the consent of the Treasury.

(7) Subsection (3) above shall not apply where the pay during absence from work covered by the relevant arrangement forms part of the expenses within section 85(4) of the Insurance Act or section 61(2) of the Industrial Injuries Act (re-imbursement by the Funds of Government expenditure in giving effect to National Insurance schemes).

(8) If the Secretary of State so directs, any approval given by him under the Insurance Act or the Industrial Injuries Act, or under any instrument having effect under either of those Acts, shall be treated as if it were approval given under subsection (1) of this section.

5.—(1) Any reference in the National Insurance Acts 1965 to 1972 and the National Insurance (Industrial Injuries) Acts 1965 to 1972 to incapacity for work shall be construed as a reference to incapacity for work which the person in question can reasonably be expected to do; and “incapable of work” in those Acts and “capable of work” in section 20 (1)(a)(i) of the Insurance Act shall be construed accordingly.

Meaning of
“incapacity
for work”
etc, and
amendment
of 1971 c. 50
s. 12(1).

(2) Without prejudice to the generality of subsection (1) above, that subsection shall apply in particular for the purposes of the provisions of section 8(5)(b)(i) of the Insurance Act and of proviso (b)(i) to section 3(2) of the Industrial Injuries Act (payment of contributions for weeks of incapacity), and accordingly a person may for the purposes of those provisions be capable of work (in the sense of subsection (1) above), although not capable of doing the work he is employed to do.

(3) In section 12(1) of the National Insurance Act 1971 (under which the Secretary of State may by regulations make provision as to the circumstances in which a marriage celebrated under a law which permits polygamy is to be treated for any purpose of the enactments relating to national insurance or family allowances as having the same consequences as a marriage celebrated under a law which does not), for the words from “in which” to “not” there shall be substituted the words “in which—

(a) a marriage celebrated under a law which permits polygamy; or

(b) any marriage during the subsistence of which a party to it is at any time married to more than one person,

is to be treated as having or not having the consequences of a marriage celebrated under a law which does not permit polygamy”.

6. Schedule 2 to the Ministry of Social Security Act 1966 shall have effect subject to Schedule 4 to this Act.

Supplemen-
tary benefits.
1965 c. 20.

Supplemental

Expenses. **7.** There shall be paid out of money provided by Parliament—

1971 c. 50. (a) any increase attributable to section 1 of this Act in the sums so payable on account of benefit by virtue of section 13(1) and (2) of the National Insurance Act 1971 ; and

(b) subject to the provision made by section 85 of the Insurance Act for reimbursement out of the National Insurance Fund and by section 61 of the Industrial Injuries Act for reimbursement out of the Industrial Injuries Fund, any increase attributable to this Act in the expenses of any government department which are so payable under either of those sections ; and

(c) any increase attributable to this Act in the sums so payable under the Supplementary Benefit Acts 1966 and 1971 ;

1967 c. 34. and the references in paragraph (b) of this section to section 61 of the Industrial Injuries Act include references to that section as applied by section 13 of the Industrial Injuries and Diseases (Old Cases) Act 1967.

Provisions as
to Northern
Ireland.

8.—(1) With a view to making for Northern Ireland provision parallel to that made by this Act for Great Britain, this Act (except section 7) shall extend to Northern Ireland subject to the adaptations provided for by Schedule 5 to this Act ; but—

(a) in section 104 of the Insurance Act and section 83 of the Industrial Injuries Act (which provide for establishing unified systems of insurance in Great Britain and Northern Ireland) references to Northern Irish legislation shall be deemed to include this Act as it applies to Northern Ireland ; and

1920 c. 67. (b) this Act shall, so far as it relates to matters in respect of which the Parliament of Northern Ireland has power to make laws, be deemed for the purposes of section 6 of the Government of Ireland Act 1920 to have been passed before the day referred to in that section as the appointed day.

1954 c. 33
(N.I.).

(2) The Interpretation Act (Northern Ireland) 1954 shall apply for the purposes of the interpretation of this Act in its application to Northern Ireland as that Act applies for the purposes of the interpretation of an Act of the Parliament of Northern Ireland.

9.—(1) This Act may be cited as the National Insurance and Supplementary Benefit Act 1973. Citation, construction, commencement and repeals. 1965 c. 51.

(2) In this Act—

“the Insurance Act” means the National Insurance Act 1965; and

“the Industrial Injuries Act” means the National Insurance (Industrial Injuries) Act 1965.

(3) This Act as it applies to Great Britain—

(a) may be cited with the National Insurance Acts 1965 to 1972 as the National Insurance Acts 1965 to 1973 and, so far as this Act relates to the subject matter of those Acts, shall be construed as one with the Insurance Act; and

(b) may be cited with the National Insurance (Industrial Injuries) Acts 1965 to 1972 as the National Insurance (Industrial Injuries) Acts 1965 to 1973 and, so far as this Act relates to the subject matter of those Acts, shall be construed as one with the Industrial Injuries Act; and

(c) may be cited with the Industrial Injuries and Diseases (Old Cases) Acts 1967 to 1972 as the Industrial Injuries and Diseases (Old Cases) Acts 1967 to 1973, and

(d) may be cited with the Ministry of Social Security Act 1966 c. 20. 1966 and the Social Security Act 1971 as the Supplementary Benefit Acts 1966 to 1973. 1971 c. 73.

(4) This Act as it applies to Northern Ireland—

(a) may be cited with the National Insurance Acts (Northern Ireland) 1966 to 1972 as the National Insurance Acts (Northern Ireland) 1966 to 1973 and, so far as this Act relates to the subject matter of those Acts, shall be construed as one with the National Insurance Act (Northern Ireland) 1966; and 1966 c. 6 (N.I.).

(b) may be cited with the National Insurance (Industrial Injuries) Acts (Northern Ireland) 1966 to 1972 as the National Insurance (Industrial Injuries) Acts (Northern Ireland) 1966 to 1973 and, so far as this Act relates to the subject matter of those Acts, shall be construed as one with the National Insurance (Industrial Injuries) Act (Northern Ireland) 1966; and 1966 c. 9 (N.I.).

(c) may be cited with the Workmen's Compensation (Supplementation) Acts (Northern Ireland) 1966 to 1972 as the Workmen's Compensation (Supplementation) Acts (Northern Ireland) 1966 to 1973; and

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(d) may be cited with the Supplementary Benefits Acts (Northern Ireland) 1966 to 1971 as the Supplementary Benefits Acts (Northern Ireland) 1966 to 1973.

(5) Schedule 6 to this Act shall have effect with respect to the commencement of this Act and with respect to the transitional matters dealt with in that Schedule.

(6) The enactments specified in Schedule 7 to this Act shall be repealed to the extent specified in the third column of that Schedule.

SCHEDULES

Section 1(1).

SCHEDULE 1

PROVISIONS TO BE SUBSTITUTED IN SCHEDULE 3
TO NATIONAL INSURANCE ACT 1965

1965 c. 51.

WEEKLY RATES OF PERIODICAL BENEFITS AND OF INCREASES FOR DEPENDANTS

PART I

Periodical Benefits

Description of benefit	Weekly rate
1. Unemployment or sickness benefit under section 19(2).	(a) higher rate £7.35 (b) middle rate £5.15 (c) lower rate £4.05 (the appropriate rate being chosen in accordance with National Insurance Act 1972 section 1(2)).
2. Invalidity pension	£7.75.
3. Invalidity allowance	(a) higher rate £1.60 (b) middle rate £1.00 (c) lower rate £0.50 (the appropriate rate being chosen in accordance with National Insurance Act 1972 section 1(4)).
4. Attendance allowance	(a) higher rate £6.20 (b) lower rate £4.15 (the appropriate rate being chosen in accordance with National Insurance Act 1972 section 2(2)).
5. Maternity allowance	£7.35.
6. Widow's allowance	£10.85.
7. Widowed mother's allowance	£7.75.
8. Widow's pension	£7.75.
9. Guardian's allowance	£3.80.
10. Retirement pension payable by virtue of this Act and not by virtue of any enactment directed to be construed as one with this Act.	(a) where the pension is payable to a woman by virtue of her husband's insurance and he is alive ... £4.75 (b) in any other case £7.75
11. Retirement pension payable by virtue of paragraph (a) or paragraph (b) of section 1(1) of the National Insurance Act 1970 or by virtue of section 5 of the National Insurance Act 1971.	(a) except where head (b) below applies £4.65 (b) where the pension is payable to a married woman who has not, at any time since she first became entitled to the pension, ceased to be a married woman £2.85
12. Age addition	£0.25.
13. Child's special allowance	£3.80.

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PART II

Increases for Dependants

Benefit to which increase applies (1)	Increase for only, elder or eldest qualifying child (2)	Increase for second qualifying child (3)	Increase for each additional qualifying child (4)	Increase for adult dependant (where payable) (5)
	£	£	£	£
1. Unemployment or sickness benefit under—				
(a) section 19(2)	2.30	1.40	1.30	4.55
(b) section 19(3)	3.80	2.90	2.80	4.75
2. Invalidity pension	3.80	2.90	2.80	4.75
3. Maternity allowance	2.30	1.40	1.30	4.55
4. Widow's allowance	3.80	2.90	2.80	—
5. Widowed mother's allowance	3.80	2.90	2.80	—
6. Retirement pension payable by virtue of this Act and not by virtue of any enactment directed to be construed as one with this Act	3.80	2.90	2.80	4.75
7. Retirement pension payable by virtue of paragraph (a) or paragraph (b) of section 1(1) of the National Insurance Act 1970	3.80	2.90	2.80	2.85
8. Child's special allowance ...	—	2.90	2.80	—

Where any unemployment or sickness benefit is payable at a weekly rate determined under section 19(3) of this Act, column (5) of this Part of this Schedule shall have effect subject to section 43(3)(b) of this Act, and where an invalidity pension is payable at a weekly rate determined under section 3(4) of the National Insurance Act 1971, the said column (5) shall have effect subject to section 43A(8)(b) of this Act.

SCHEDULE 2

Section 2(1).

PROVISIONS TO BE SUBSTITUTED IN SCHEDULE 1
TO THE NATIONAL INSURANCE ACT 1965

1965 c. 51.

RATES OF FLAT-RATE CONTRIBUTIONS

PART I

Employed persons

Description of employed person 1	Weekly rate of contribution	
	Unless by virtue of a non- participating employment 2	If by virtue of a non- participating employment 3
	£	£
Men between the ages of 18 and 70 (other than men over the age of 65 who have retired from regular employment)	0·632	0·752
Women between the ages of 18 and 65 (other than women over the age of 60 who have retired from regular employment)	0·545	0·625
Boys under the age of 18	0·461	—
Girls under the age of 18	0·381	—

PART II

Employers

Description of employed person 1	Weekly rate of contribution	
	Unless by virtue of a non- participating employment 2	If by virtue of a non- participating employment 3
	£	£
Men over the age of 18	0·954	1·074
Women over the age of 18	0·828	0·908
Boys under the age of 18	0·647	—
Girls under the age of 18	0·557	—

For the purposes of this Part of this Schedule a person over pensionable age, not being an insured person, shall be treated as an employed person if he would be an insured person were he under pensionable age and would be an employed person were he an insured person.

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PART III

Self-employed persons

Description of self-employed person 1	Weekly rate of contribution 2
	£
Men between the ages of 18 and 70 (other than men over the age of 65 who have retired from regular employment) ...	1·763
Women between the ages of 18 and 65 (other than women over the age of 60 who have retired from regular employment)	1·477
Boys under the age of 18	1·002
Girls under the age of 18	0·842

PART IV

Non-employed persons

Description of non-employed person 1	Weekly rate of contribution 2
	£
Men between the ages of 18 and 65	1·353
Women between the ages of 18 and 60	1·057
Boys under the age of 18	0·772
Girls under the age of 18	0·612

SCHEDULE 3

Section 3(1).

PROVISIONS TO BE SUBSTITUTED IN SCHEDULE 3 TO THE
NATIONAL INSURANCE (INDUSTRIAL INJURIES) ACT 1965

1965 c. 52.

RATE OR AMOUNT OF BENEFIT ETC.

Description of benefit etc.	Amount
1. Injury benefit under s. 11 (weekly rate).	(a) for any period during which the beneficiary is over the age of 18 or is entitled to an increase of benefit in respect of a child or adult dependant £10·10. (b) for any period during which the beneficiary is not over the age of 18 and not entitled as aforesaid £6·75.
2. Maximum disablement gratuity under s. 12(3).	£850.
3. Disablement pension under s. 12(5) (weekly rate).	For the several degrees of disablement set out in column 1 of the following Table, the respective amounts in that Table, using:— (a) column 2 for any period during which the beneficiary is over the age of 18 years or is entitled to an increase of benefit in respect of a child or adult dependant; (b) column 3 for any period during which the beneficiary is not over the age of 18 and not entitled as aforesaid.

TABLE

Degree of disablement	Amount	
(1)	(2)	(3)
per cent.	£	£
100... ..	12·80	7·80
90... ..	11·52	7·02
80... ..	10·24	6·24
70... ..	8·96	5·46
60... ..	7·68	4·68
50... ..	6·40	3·90
40... ..	5·12	3·12
30... ..	3·84	2·34
20... ..	2·56	1·56

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Description of benefit etc.	Amount
4. Unemployability supplement under s. 13 (increase of weekly rate of disablement pension).	£7·75.
4A. Increase under s. 13A of unemployability supplement (early onset of incapacity for work).	(a) if on the qualifying date the beneficiary was under the age of 35, or if that date fell before 5th July 1948 £1·60. (b) if head (a) above does not apply and on the qualifying date the beneficiary was under the age of 45 £1·00. (c) if heads (a) and (b) above do not apply, and on the qualifying date the beneficiary was a man under the age of 60, or a woman under the age of 55 £0·50.
5. Maximum increase under s. 14 of weekly rate of disablement pension in cases of special hardship.	£5·12 or the amount (if any) by which the weekly rate of the pension, apart from any increase under s. 15, 17 or 18 of this Act or under s. 6 of the National Insurance Act 1966, falls short of £12·80, whichever is the less.
6. Maximum increase under s. 15 of weekly rate of disablement pension where constant attendance needed.	(a) except in cases of exceptionally severe disablement £5·15.
6A. Increase under s. 6(1) of National Insurance Act 1966 of disablement pension (exceptionally severe disablement).	(b) in any case £10·30.
7. Increase under s. 17 of weekly rate of benefit in respect of children, except where beneficiary is entitled to unemployability supplement.	£5·15.
7A. Increase under s. 17 of weekly rate of disablement pension in respect of children where beneficiary is entitled to unemployability supplement.	(a) in respect of only, elder or eldest child of beneficiary's family £2·30. (b) in respect of second child of beneficiary's family £1·40. (c) in respect of each additional child of beneficiary's family £1·30. (a) in respect of only, elder or eldest child of beneficiary's family £3·80. (b) in respect of second child of beneficiary's family £2·90. (c) in respect of each additional child of beneficiary's family £2·80.
8. Increase under s. 18 in respect of adult dependant of weekly rate of injury benefit and of disablement pension not falling to be increased by unemployability supplement.	£4·55.
8A. Increase under s. 18 in respect of adult dependant of weekly rate of disablement pension falling to be increased by unemployability supplement.	£4·75.
9. Widow's pension under s. 19:	(a) initial rate ... £10·85. (b) higher permanent rate ... £8·30. (c) lower permanent rate ... 30 per cent. of the weekly rate for the time being of a widow's pension under the National Insurance Act 1965 as specified in Schedule 3 to that Act.
10. Widower's pension under s. 20 (weekly rate).	£8·30.

Description of benefit etc.	Amount
11. Allowance under s. 21 in respect of children of deceased's family: (a) weekly rate of allowance under s. 21(1).	(i) in respect of only, elder or eldest qualifying child £2·30. (ii) in respect of second qualifying child £1·40. (iii) in respect of each additional qualifying child £1·30.
(b) increase under s. 21(2) ...	£1·50.
12. Maximum under s. 29(1)(a) of aggregate of weekly benefit payable for successive accidents.	(a) for any period during which the beneficiary is over the age of 18 or is entitled to an increase of benefit in respect of a child or adult dependant £12·80. (b) for any period during which the beneficiary is not over the age of 18 and not entitled as aforesaid £7·80.

SCHEDULE 4

Section 6.

AMENDMENT OF SCHEDULE 2 TO MINISTRY OF SOCIAL SECURITY ACT 1966

Interpretation

1. In this Schedule "the Act" means the Ministry of Social Security Act 1966, and "the Schedule" means Schedule 2 to the Act.

Adjustment for exceptional circumstances

2. Paragraph 4(2) of the Schedule (tests for applying paragraph 4(1)) shall cease to have effect.

Replacement of paragraphs 9, 10, 11, 12 and 12B

3. Paragraphs 4 to 6 below shall have effect in lieu of paragraphs 9, 10, 11, 12 and 12B of the Schedule and shall be inserted in the Schedule as paragraphs 8A, 9 and 10, with the substitution of "this Act" and "this Schedule" for "the Act" and "the Schedule"; and

- (a) in paragraph 8(2) of the Schedule, for the words "that specified in" there shall be substituted the words "that applicable under"; and
- (b) in paragraph 10A(1) of the Schedule, for the words "the amount specified in paragraph 9(b)" there shall be substituted the words "the first of the amounts specified in paragraph 9(b)"; and
- (c) paragraphs 10A and 12A of the Schedule shall be renumbered 11 and 12 respectively, and accordingly "12" shall be substituted for "12A" in paragraph 14 and for "12B" in paragraph 17 of the Schedule.

SCH. 4

Amounts preceded by (a), (b) or (c)

4.—(1) Where, in the following paragraphs, amounts are preceded by (a), (b) or (c)—

(a) the amount preceded by (a) is applicable if neither of the others is applicable ;

(b) the amount preceded by (b) is applicable if either—

(i) the requirements are those of a person eligible for a supplementary pension and neither he nor a person whose requirements are aggregated with his under paragraph 3 of the Schedule is aged 80 years or more, or

(ii) the requirements are those of a person who has been in receipt of a supplementary allowance for a continuous period of not less than two years and his right to the allowance is not, and was not at any time during the last two years of that period, subject to the condition of section 11 of the Act ;

(c) the amount preceded by (c) is applicable if the requirements are those of a person eligible for a supplementary pension and either he or a person whose requirements are aggregated with his under paragraph 3 of the Schedule is aged 80 years or more.

(2) Where—

(a) an amount applicable under the following paragraphs to the requirements of any person is preceded by (b) or (c) ; and

(b) benefit is (or would but for this paragraph be) awarded in accordance with paragraph 4 of the Schedule at an increased amount so as to take account of exceptional expenses ;

then, subject to sub-paragraph (3) below, the increase shall be made only to the extent that its weekly amount would (apart from this sub-paragraph) exceed—

(i) 50p where the amount applicable is preceded by (b), and

(ii) 75p where the amount applicable is preceded by (c).

(3) Sub-paragraph (2) above does not apply to an increase or part of an increase attributable to—

(a) heating expenses ; or

(b) expenses taken into account, but not fully met, under paragraph 13(1)(b) of the Schedule ; or

(c) expenses of a person whose requirements are aggregated under paragraph 3(2) of the Schedule with those of the person entitled to the benefit.

Normal requirements

£

5. Requirements of persons other than blind persons—

(a) husband and wife or other persons falling within paragraph 3(1) of the Schedule

(a) 11·65

(b) 12·85

(c) 13·10

	£	SCH. 4
(b) person living alone or householder not falling within sub-paragraph (a) of this paragraph who is directly responsible for household necessities and rent (if any)	(a) 7·15 (b) 8·15 (c) 8·40	
(c) any other person aged—		
(i) not less than 18 years	(a) 5·70 (b) 6·60 (c) 6·85	
(ii) less than 18 but not less than 16 years ...	4·40	
(iii) less than 16 but not less than 13 years ...	3·70	
(iv) less than 13 but not less than 11 years ...	3·00	
(v) less than 11 but not less than 5 years ...	2·45	
(vi) less than 5 years	2·05	

Blind Persons

6. Requirements of persons who are or include blind persons—

(a) husband and wife or other persons falling within paragraph 3(1) of the Schedule—

	£
(i) if one of them is blind	(a) 12·90 (b) 14·10 (c) 14·35
(ii) if both of them are blind	(a) 13·70 (b) 14·90 (c) 15·15

(b) any other blind person aged—

(i) not less than 18 years	(a) 8·40 (b) 9·40 (c) 9·65
(ii) less than 18 but not less than 16 years ...	5·30
(iii) less than 16 but not less than 13 years ...	3·70
(iv) less than 13 but not less than 11 years ...	3·00
(v) less than 11 but not less than 5 years ...	2·45
(vi) less than 5 years	2·05

Attendance requirements and rent

7. In paragraphs 12A (to be renumbered 12) and 13 of the Schedule (as amended by the Supplementary Benefit (Determination of Requirements) Regulations 1972) there shall be substituted— S.I. 1972 No. 1145.

- (a) for each reference to £5·40 a reference to £6·20;
- (b) for each reference to £3·60 a reference to £4·15; and
- (c) for the reference to £0·70 a reference to £0·80.

SCH. 4

Disregard of widow's pensions and allowances

8. For paragraph (b) of paragraph 24(4) of the Schedule there shall be substituted the following paragraphs—

- 1916 c. 65.
1917 c. 51.
1939 c. 82.
1939 c. 83.
1947 c. 19.
1951 c. 8
(15 & 16 Geo. 6
& 1 Eliz. 2).
1969 c. 65.
1914 c. 30.
1914 c. 18
(5 & 6 Geo 5).
1915 c. 24.
- “(b) any widow's pension or allowance (except an allowance in respect of children) granted in respect of a death due to service or war injury under powers conferred by or under the Ministry of Pensions Act 1916, the Air Force (Constitution) Act 1917, the Personal Injuries (Emergency Provisions) Act 1939, the Pensions (Navy, Army, Air Force and Mercantile Marine) Act 1939, the Polish Resettlement Act 1947, the Home Guard Act 1951 or the Ulster Defence Regiment Act 1969 ; and
- (c) a pension or allowance for a widow (except an allowance in respect of children) granted under any scheme made under the Injuries in War (Compensation) Act 1914, the Injuries in War Compensation Act 1914 (Session 2), or the Injuries in War (Compensation) Act 1915 or under any War Risk Compensation Scheme for the Mercantile Marine”.

Section 8(1)

SCHEDULE 5

ADAPTATIONS FOR NORTHERN IRELAND

Introductory

1. In sections 1 to 6 of and Schedules 1 to 4 and 6 to this Act, in their application to Northern Ireland by virtue of section 8(1) of this Act, there shall be made the adaptations specified in the following provisions of this Schedule.

References to enactments amended

2.—(1) For any of the Acts or regulations specified in column 1 of the Table set out in this sub-paragraph there shall be substituted the Act, Order or regulations specified in relation thereto in column 2 of the Table.

TABLE

1966 c. 6 (N.I.).	The Insurance Act.	The National Insurance Act (Northern Ireland) 1966.
1966 c. 9 (N.I.).	The Industrial Injuries Act.	The National Insurance (Industrial Injuries) Act (Northern Ireland) 1966.
1966 c. 6. 1966 c. 16 (N.I.).	The National Insurance Act 1966.	The National Insurance (No. 2) Act (Northern Ireland) 1966.
1966 c. 20. 1966 c. 28 (N.I.).	The Ministry of Social Security Act 1966.	The Supplementary Benefits &c. Act (Northern Ireland) 1966.
1967 c. 34. 1966 c. 14 (N.I.).	The Industrial Injuries and Diseases (Old Cases) Act 1967.	The Workmen's Compensation (Supplementation) Act (Northern Ireland) 1966.
1969 c. 44. 1969 c. 19 (N.I.).	The National Insurance Act 1969.	The National Insurance &c. (No. 2) Act (Northern Ireland) 1969.
1970 c. 51. 1970 c. 28 (N.I.).	The National Insurance Act 1970.	The National Insurance Act (Northern Ireland) 1970.
1971 c. 50. S.R. & O. (N.I.). 1971 No. 224.	The National Insurance Act 1971.	The Social Services (Parity) Order (Northern Ireland) 1971.

S.I. 1972 No. 1143. S.R. & O. (N.I.) 1972 No. 181. S.R. & O. (N.I.) 1973 No. 64.	The Supplementary Benefit (Determination of Requirements) Regulations 1972.	The Supplementary Benefit (Determination of Requirements) Regulations (Northern Ireland) 1972 and The Supplementary Benefit (Determination of Requirements) Regulations (Northern Ireland) 1973.
	The National Insurance Acts 1965 to 1972.	The National Insurance Acts (Northern Ireland) 1966 to 1972.
	The National Insurance (Industrial Injuries) Acts 1965 to 1972.	The National Insurance (Industrial Injuries) Acts (Northern Ireland) 1966 to 1972.

(2) The word "Act" and the word "section", where used with reference to the National Insurance Act 1971, shall be replaced by the word "Order" and the word "Article"; and in the case of the Acts mentioned in the Table set out in this sub-paragraph for references to the provisions specified in column 1 there shall be substituted the references in column 2 (being the corresponding references where the numbering differs in the Act substituted by sub-paragraph (1) above). 1971 c. 50.

TABLE

The Insurance Act:—

Section 19(2) or section 19(3).	Section 18(2) or section 18(3).
Section 20(1)(a)(i).	Section 19(1)(a)(i).
Section 43(3)(b).	Section 42(3)(b).
Section 43A(8)(b).	Section 42A(8)(b).
Section 85(4).	Section 83(3).
Section 107(4).	Section 101(3).

The Industrial Injuries Act:—

Proviso (b)(i) to section 3(2).	Section 3(2)(b)(i).
Section 12(3) or section 12(5).	Section 12(4) or section 12(6).
Section 61(2).	Section 59(3).

(3) Any reference in this Act to a provision of the National Insurance Act 1972 shall be construed as a reference to that provision as it applies to Northern Ireland.

General adaptations

3. For any such reference as is specified in column 1 of the Table set out in this paragraph there shall be substituted the reference specified in relation thereto in column 2.

TABLE

The Consolidated Fund.	The Exchequer of Northern Ireland.
The Industrial Injuries Fund.	The Northern Ireland Industrial Injuries Fund.
The National Insurance Fund.	The Northern Ireland National Insurance Fund.
The Secretary of State (except where the reference occurs in paragraph 1 of Schedule 6).	The Ministry of Health and Social Services for Northern Ireland.
The Treasury.	The Ministry of Finance for Northern Ireland.

SCH. 5

Omissions

4. There shall be omitted—

- (a) in sections 2(1) and 3(4) of this Act the words from “and there” onwards;
- (b) section 3(3)(b) of this Act and the word “and” immediately preceding it;
- (c) in Schedule 6 to this Act, in paragraph 1(4) the words “a statutory instrument containing”, and paragraph 2.

Miscellaneous adaptations

5. For section 2(4) of this Act there shall be substituted—

“(4) The contributions to be paid under the National Insurance Act (Northern Ireland) 1966 to the Northern Ireland National Insurance Fund may include in respect of the financial year 1974–75 and each subsequent financial year, the sum of £3·8 million, instead of the amount provided for by section 3(3) of the National Insurance Act 1972.”

6. In Schedule 6 to this Act—

- (a) in paragraph 1, for the words “Secretary of State”, wherever occurring, there shall be substituted the words “Minister of Health and Social Services for Northern Ireland”; and
- (b) in paragraph 1(4) after the words “House of Parliament)” there shall be inserted the words “and section 80(2) of the National Insurance (Industrial Injuries) Act (Northern Ireland) 1966 (which makes like provision)”.

1966 c. 9(N.I.).

Section 9(5).

SCHEDULE 6

COMMENCEMENT AND TRANSITIONAL PROVISIONS

Commencement of this Act

1.—(1) The following provisions of this Act, that is—

- (a) sections 4 and 5, and
- (b) paragraph 8 of Schedule 4,

shall come into force on the passing of this Act.

(2) Subject to sub-paragraph (1) above, the provisions of this Act shall not come into force until such date or dates as the Secretary of State may by order appoint for those provisions or any of them.

(3) Different days may be appointed under this paragraph for different purposes of the relevant provisions (that is to say, the provisions to which sub-paragraph (2) above applies) or for the same purposes in relation to different cases or classes of case; and if that is done, or if different days are appointed for different provisions, then—

- (a) an order under this paragraph may contain such incidental or supplemental provisions as appear to the Secretary of State to be necessary or expedient as respects the period or any part of the period when the relevant provisions are to have a partial operation only and, in particular, may contain

provisions modifying and supplementing, in relation to the period to which the order is to apply, the relevant provisions or the provisions of any Act amended by this Act; and

- (b) any provision made in pursuance of paragraph (a) above may be varied or revoked by a subsequent order of the Secretary of State.

(4) Section 107(4) of the Insurance Act (which provides for orders under that Act to be subject to annulment in pursuance of a resolution of either House of Parliament) shall not apply to any order under this paragraph, but a statutory instrument containing any such order shall be laid before Parliament after being made.

Regulations etc: temporary exclusion of certain requirements

2.—(1) Section 108 of the Insurance Act (which requires a preliminary draft of regulations to be submitted to the National Insurance Advisory Committee before the regulations are made or, in certain cases, before a draft is laid before Parliament) and section 62(2) of the Industrial Injuries Act (which requires a proposal to make regulations to be referred to the Industrial Injuries Advisory Council for consideration and advice) shall not apply to regulations made, or to a draft of regulations laid, before the expiration of six months beginning with the date of the passing of this Act if the instrument containing the regulations or, as the case may be, the draft states that the regulations contain no provisions other than such as—

- (a) are made in consequence of this Act; or
- (b) operate with reference to the amount of a person's earnings, and are made under one or more of the following provisions (which relate to the classification of insured persons or the liability to contributions), that is to say—
 - (i) sections 1(3) and 8(5) of the Insurance Act, and
 - (ii) section 3(3)(b) of the Industrial Injuries Act; or
- (c) concern the amount by which the rate of disablement pension may be increased under section 15(1) of the Industrial Injuries Act where constant attendance is required.

(2) The following enactments, that is to say—

- (a) section 107(1) of the Insurance Act; and
- (b) section 85(4) of the Industrial Injuries Act; and
- (c) section 4(8) (a) of the Industrial Injuries and Diseases (Old 1967 c. 34. Cases) Act 1967,

shall not require a draft of any regulations, order or scheme to be laid before Parliament or approved by resolution of either House before the making of the regulations, order or scheme, if the regulations, order or scheme are or is made before the expiration of six months beginning with the date of the passing of this Act, and if the instrument containing the regulations, order or scheme states that they or it are or is made in consequence of this Act; but where any of those enactments would otherwise so require, the instrument containing the regulations, order or scheme shall instead be subject to annulment in pursuance of a resolution of either House of Parliament.

Section 9(6).

SCHEDULE 7

REPEALS

Chapter	Short Title	Extent of Repeal
1966 c. 20	The Ministry of Social Security Act 1966.	In Schedule 2, paragraphs 4(2) and (as in force before the commencement of this Act) 9, 10, 11, 12 and 12B.
1966 c. 28 (N.I.).	The Supplementary Benefits &c. Act (Northern Ireland) 1966.	In Schedule 2, paragraphs 4(2) and (as in force before the commencement of this Act) 9, 10, 11, 12 and 12B.
1969 c. 48. 1972 c. 57.	The Post Office Act 1969. The National Insurance Act 1972.	Section 51. Section 1(1). Section 3, but so that the repeal of section 3(3) does not apply for the year 1973-74 or earlier years. In section 4, subsections (1), (4) and (5). Schedules 1 to 3. In Schedule 5— in the Table in paragraph 2(1) the entries (in both columns) relating to the Industrial Injuries and Diseases (Old Cases) Act 1967 and the National Insurance Act 1969; in the Table in paragraph 2(2) the entries (in both columns, relating to sections 19(3), 43(3)(b) and section 43A (8)(b) of the National Insurance Act 1965, section 12(3)(5) of the National Insurance (Industrial Injuries) Act 1965 and sections 1(3) and 11(1) of the National Insurance Act 1971; all of paragraph 3(a) except the words "section 6(4)"; paragraph 3(b); and paragraph 5, but not for the year 1973-74, or earlier years.